

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Simon Wang	Team: Squad #02	CCRB Case #: 201501091	☐ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Monday, 02/09/2015 9:04 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 8/9/2016	Precinct: 28
Date/Time CV Reported Fri, 02/13/2015 12:41 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 02/17/2015 12:41 PM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Rhyan Nelson	3143	956128	PSA 5

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Jamar Lamey	25361	946508	PSA 1
2. POM Roman Diaz	7893	955881	PSA 5

Officer(s)	Allegation	Investigator Recommendation
A . POM Rhyan Nelson	Discourtesy: PO Rhyan Nelson spoke rudely to § 87(2)(b) and § 87(2)(b)	A . Unsubstantiated

Case Summary

On February 9, 2015, at approximately 8:40 p.m., § 87(2)(b) was inside her apartment at § 87(2)(b) § 87(2)(b) in Manhattan. § 87(2)(b)'s son § 87(2)(b) exited the apartment and went into the hallway with a styrofoam cup of Hennessy Cognac. § 87(2)(b) was stopped by PO Rhyen Nelson and PO Roman Diaz of PSA 5 in the hallway for having an open container of alcohol and they asked him for identification. § 87(2)(b) entered the apartment and told § 87(2)(b) that police officers were at the door. § 87(2)(b) spoke to the officers who told § 87(2)(b) that § 87(2)(b) had to exit the apartment. § 87(2)(b) told the officers that § 87(2)(b) would not exit the apartment because he was afraid of them. PO Nelson allegedly said to her, "I'm coming into the fucking apartment to get him." (**Allegation A**) During this, § 87(2)(b) called PO Jamar Lamey of PSA 1, § 87(2)(b) who was off duty. § 87(2)(b) told PO Lamey what was happening and claimed that PO Lamey heard PO Nelson curse at her. PO Nelson and PO Diaz did not enter the apartment. Eventually § 87(2)(b) agreed to exit the apartment after PO Nelson and PO Diaz called for backup. § 87(2)(b) was handcuffed and escorted to the PSA 5 stationhouse, where a warrant check revealed an active warrant for him.

Mediation, Civil and Criminal Histories

§ 87(2)(b) chose not to mediate her complaint. An enquiry to the Office of the New York City Comptroller was submitted for any notice of claim filed by § 87(2)(b) for this incident, and the results will be added to this case file upon its receipt. [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b)

§ 87(2)(b)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint by § 87(2)(b) and § 87(2)(b) (encl. 1b-c).
- This is the first CCRB complaint against PO Nelson in his 1 year tenure (encl. 1a).

Finding and Recommendations

Allegation not Pleaded

- § 87(2)(g)
- § 87(2)(b)
- § 87(2)(b)
- § 87(2)(b)

Identification of Subject Officers

PO Nelson and PO Diaz admitted to interacting with § 87(2)(b) read PO Nelson's nameplate and identified him as the officer who cursed at her.

Investigative Findings and Recommendations

Allegation A - PO Rhyen Nelson spoke rudely to § 87(2)(b) and § 87(2)(b)

§ 87(2)(b) alleged that PO Nelson told her, "I'm coming into the fucking apartment to get him." § 87(2)(b) did not cooperate with attempts to interview him, but in a phone statement (encl. 2f) alleged that one of the officers called him a "motherfucker." PO Nelson and PO Diaz denied that PO Nelson cursed at anyone. PO Lamey stated that he could not discern any statement by anyone

over the phone aside from § 87(2)(b) s. § 87(2)(g) , it is recommended that **Allegation A** be closed as **Unsubstantiated**.

Pod: 2

Investigator:	<u>Simon Wang</u>	<u>05/04/15</u>
	Signature	Date

Supervisor:	<u></u>	<u></u>
	Title/Signature	Date

Reviewer:	<u></u>	<u></u>
	Title/Signature	Date

Reviewer:	<u></u>	<u></u>
	Title/Signature	Date